

The East Punjab Urban Rent Restriction Act (Extension to Chandigarh) Act, 1974

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[Act 54 of 1974](#)

[Published in Gazette of India on 20 December 1974](#)

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[The East Punjab Urban Rent Restriction \(Chandigarh Amendment\) Act, 1982 \(Act 42 of 1982\)](#)

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[21 August 1982](#)

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[An Act to extend the East Punjab Urban Rent Restriction Act, 1949, to the Union territory of Chandigarh.](#)

[BE it enacted by Parliament in the Twenty-fifth Year of the Republic of India as follows:-](#)

[1.](#)

[Short title.-](#)

This Act may be called the East Punjab Urban Rent Restriction Act (Extension to Chandigarh) Act, 1974.

2.

Definition.-

In this Act, "the Act" means the East Punjab Urban Rent Restriction Act, 1949 (East Punjab Act III of 1949) as it extended to, and was in force in, certain areas in the pre-reorganisation State of Punjab (being areas which were administered by municipal committees, cantonment boards, town committees or notified area committees or areas notified as urban areas for the purposes of that Act) immediately before the 1st day of November, 1966.

3.

Extension of East Punjab Act III of 1949 to Chandigarh.-

Notwithstanding anything contained in any judgment, decree or order of any court, the Act shall, subject to the modifications specified in the Schedule, be in force in, and be deemed to have been in force with effect from the 4th day of November, 1972 in, the Union territory of Chandigarh as if the provisions of the Act as so modified had been included in and formed part of this section and as if this section had been in force at all material times.

4.

Validation and saving.-

(1)

Notwithstanding anything contained in any judgment, decree or order of any court, anything done or any action taken (including any notification or direction issued or rents fixed or permission granted or order made) or purported to have been done or taken under the Act shall be deemed to be as valid and effective as if the provisions of this Act had been in force at all material times when such thing was done or such action was taken.

(2)

Nothing in this Act shall render any person guilty of any offence for any contravention of the provisions of the Act which occurred before the commencement of this Act

The Schedule

(See section 3)

Modifications in The Act

1. Throughout the Act, for "State Government", substitute "Central Government".

2. Section 1, for sub-sections (2) and (3), substitute-

"(2) It extends to all the urban areas in the Union territory of Chandigarh."

3. Section 2,-

(i)

after clause (d), insert-

"(dd) "notification" means a notification published in the Official Gazette;"

(ii)

for clause (j), substitute-

"(j) "urban area" means the area comprised in Chandigarh as defined in clause (d) of section 2 of the Capital of Punjab (Development and Regulation) Act, 1952 (Punjab Act XXVII of 1952) and includes such other area comprised in the Union territory of Chandigarh as the Central Government may, having regard to the density of the population and the nature and extent of the accommodation available therein and other relevant factors, declare by notification to be urban for the purposes of this Act.'.

4. For section 20, substitute-

"20. Power to make rules.-

(1)

The Central Government may, by notification, make rules for the purpose of carrying out all or any of the provisions of this Act.

(2)

Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so,

however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule."

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